

		“In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) Here, the Complaint alleges Defendants knew their unit was suffering from severe cockroach infestations, microbial growth, plumbing leaks and structural openings that allowed pests to enter. (Complaint, ¶ 134.) Defendants were repeatedly notified of these dangerous and unsanitary conditions, but chose to ignore the complaints and/or failed to meaningfully repair or remediate the conditions. (Complaint, ¶ 135-137.) Defendants allowed the cockroach infestation to continue while collecting rent from Plaintiffs, and with a reckless disregard for the probability that Plaintiffs would suffer severe emotional distress from having to live with cockroaches. (Complaint, ¶ 138.) While the Complaint acknowledges Defendants’ attempts to remediate the cockroach and plumbing issues, it also alleges Defendants engaged in “superficial and ineffective responses” and allowed the conditions to persist despite repeated complaints. The cockroaches infiltrated Plaintiffs’ kitchenware, furniture, and personal belongings and even crawled into Plaintiff’s ear. Failure to effectively and promptly remediate the issues could be found to be oppressive and/or malicious. Accordingly, the motion to strike punitive damages allegations is DENIED. Clerk to give notice.
6	Kiani vs. Koffey 2025-01484637	Motion to Appear Pro Hac Vice Continued. See minute order dated 6/23/26 (ROA 259).
7	Jin vs. Bloomingdale's, LLC	CMC Motion for Reclassification Demurrer to Complaint

	2025-01510901	Motion to Strike Complaint All matters off calendar. Case dismissed on 6/11/26.
8	Nationwide Insurance Company vs. Cal-Coast Packing & Crating, Inc. 2025-01501912	CMC Demurrer to Complaint CMC continued. See minute order dated 6/4/26 (ROA 61). Demurrer is off calendar. See notice filed 5/26/26 (ROA 56).
9	Rume Medical Group, Inc vs. Lee M.D 2025-01481522	Motion to Appear Pro Hac Vice Off calendar. See minute order dated 6/23/26 (ROA 117).
10	Zacharda vs. Orange County Youth Sports Association 2020-01149973	Motion for Leave to Amend Plaintiff and Cross-Defendant Kirk Zacharda's motion for leave to file an amended answer is denied. Given the proximity of the Motion for Summary Judgment (MSJ) and trial date, there is prejudice to OCYSA in permitting the amendment that cannot be cured by continuing the current trial date of October 5, 2026. Further, there hasn't been a sufficient showing of diligence or reasonable explanation for the delay in seeking the relief. The court acknowledges that new counsel substituted into this case late last year. Although new counsel does have a duty to investigate the legal and factual sufficiency of claims upon substitution, this duty does not automatically translate into good cause for late amendments. (<i>Primo Hospitality Group, Inc. v. Haney</i> (2019) 37 Cal.App.5 th 165 [Holding the mere act of substituting in as counsel carries no automatic legal consequences with respect to the existing pleadings.]) There is no reasonable explanation as to why the amendment could not have been made sooner. The court may consider permitting the amendment and continuing the current MSJ and trial date if the parties enter into a stipulation to waive the five-year dismissal requirement of California Code of Civil Procedure § 583.310. That section provides that an action shall be brought to trial within five years after the action is commenced against the defendant. The court notes that the parties previously stipulated to waive the section 583.310 requirement for the January 2026 trial date, but the stipulation was specific to the January date. Defendant then requested a continuance of trial on